

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

November 8, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Dr. Rinne, Mr. Pierson, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Ms. Case, and pursuant to support received by Mr. Collins and Ms. Ash, agenda item #12(e) was removed from the Consent Agenda. Mr. Collins moved to approve the remaining Consent Agenda items, seconded by Mr. Spiker. Motion carried. Voting "yes" – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on October 25, 2010. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on November 1, 2010. Motion (per Consent Agenda) carried.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Motion carried. Voting "yes" – all members of the governing body.

"An Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in the SW1/4 of Section 25, T.14N., R.66W., 6th P.M., Laramie County, Wyoming (generally located north of Pershing Boulevard, between Whitney Road and Christensen Road)." Reporting for Public Services Committee, Ms. Ash moved to approve on second reading, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body.

"An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the Zoning Classification from LR-2 Low Density Residential-Developing District to MUB Mixed Use with Business Emphasis District for a portion of the NW1/4NE1/4NW1/4 of Section 26, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located south of and adjacent to Dell Range Boulevard, east of Van Buren Avenue)" -- referred to Public Services Committee (sponsor - Ms. Ash).

"An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the Zoning Classification from LR-2 Low Density Residential-Developing and CB Community Business Districts to LR-2, MR-2 Low and Medium Density Residential-Developing and P Public Districts for the The Pointe, Fifth Filing, A Replat of Lots 13-25, Block 13; Lots 27-69, Block 14; Lots 1-

35, Block 16; Lots 1-22, Block 17; Lots 1-27, Block 18; Lots 1-32, Block 19; Lots 1-19, Block 20 and Lot 1, Block 21, The Point; and Lots 37-38 and 71, Block 14; The Pointe, Second Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of E. Four Mile and Powderhouse Roads" -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] "A Resolution adopting the Cheyenne Metropolitan Area Pedestrian Plan and Cheyenne Metropolitan Area Safe Routes to School Plan" -- referred to Public Services Committee (sponsors - Ms. Ash, Ms. Broyles, Mr. Brown, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez).

[CA] Contract between the City of Cheyenne, Transit Division and Wyoming Department of Health, Aging Division to provide supportive services to persons 60 years or older (Title III-B Program Grant). Motion (per Consent Agenda) carried. (#5610)

Professional Services Agreement/Contract between the Cheyenne Metropolitan Planning Organization and Cambridge Systematics, Inc. to provide support for Transportation Safety Plan Implementation. Reporting for Finance Committee, Mr. Brown moved to approve, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Mr. Valdez. It was noted the substitute addresses federal funding contract language requirements, and includes Exhibits A, B and C. Motion to amend carried. Voting "yes" – all members of the governing body. Upon inquiry regarding differing rates for hours of services, Sreyoshi Chakraborty, Metropolitan Planning Organization, advised different types of staff utilized by the consultant have different hourly rates. Main motion as amended by substitute, including the exhibits, carried. Voting "yes" – all members of the governing body. (#5611)

Professional Services Agreement/Contract between the Cheyenne Metropolitan Planning Organization and Alta Planning + Design to prepare the Cheyenne Metropolitan Planning Organization On Street Bicycle Plan and Greenway Plan Update. Mr. Brown moved to approve, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Mr. Valdez. It was noted the substitute addresses federal funding contract language requirements, and includes Exhibits A, B, and C. Motion to amend carried. Voting "yes" – all members of the governing body. Main motion as amended by substitute, including the exhibits, carried. Voting "yes" – all members of the governing body. (#5612)

Professional Services Agreement/Contract between the City of Cheyenne on behalf of the Cheyenne Metropolitan Planning Organization and Felsberg, Holt and Ullevig for South Greeley Highway Corridor 10% Conceptual Plan. Mr. Brown moved to approve, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Mr. Valdez. It was noted the purpose of the substitute is for the same reason as mentioned for the two previous agenda items. Motion to amend carried. Voting "yes" – all members of the governing body. Main motion as amended by substitute, including the exhibits, carried. Voting "yes" – all members of the governing body. (#5613)

Contract between the City of Cheyenne and WINhealth Partners for city employees health insurance coverage. Mr. Brown moved to approve, seconded by Mr. Spiker. Upon inquiry, Rich Wiederspahn, Human Resources Director, provided information on the staff Insurance Committee review and evaluation process, and explained high medical claims experience during

the past year as well as the new federal health care act have contributed to the 12.6% coverage cost increase. He discussed keeping health care premiums and deductible amounts affordable for employees; different coverage options available under the plan, and the effect of the federal Affordable Care Act (ACA) on increased provider costs. Steve Goldstone, WINhealth Partners, advised WINhealth worked with actuaries and industry experts to project estimated increases due to the impact of the ACA, noting any time benefits expand there is some cost involved. Upon query, Mr. Wiederspahn stated he was unaware of whether City employees were eligible to participate in the State's health insurance program. Discussion followed and included the following topics: Amount of high medical claims incurred within the past year; degree of staff due diligence conducted in reviewing and evaluating a health plan; lack of seeking proposals from other providers; continuing costs of health care coverage and budgetary concerns; percentage of premium cost paid by the City vs. employees; deductible/co-pay amounts; differences between shelter, silver and gold plans; stress incurred by employees within the past year due to budgetary reductions; employee wellness (coaching) program and affiliated costs, and continuing need to review how to curtail future cost increases. Throughout discussion, Mr. Wiederspahn and Mr. Goldstone provided information available in response to questions. Barb Dorr, City Treasurer, advised the estimated cost of implementing a wellness/coaching program for employees last year was \$50,000, at which time the City was offered to be included in a pilot program through WINhealth. She estimated the current cost to implement a program would be double that amount. Upon further inquiry, Mr. Goldstone clarified that the catastrophic claims the City had last year would not have been impacted by having a wellness program. Mr. Wiederspahn verified the Committee did not research plans offered by other health insurance companies during the plan review/renewal process, and stated catastrophic illnesses and accidents that occurred last year has driven up premiums which could also affect coverage costs by other providers. He discussed upcoming employee health education sessions; nurse hotline assistance program currently in place, and other health awareness and training for employees to hopefully assist in reducing coverage costs. Upon inquiry concerning the percentage increase of catastrophic claims incurred in the past year, Mr. Wiederspahn indicated he did not have that information available at the meeting and would provide it. Comments followed on continuing research regarding a wellness program. Motion carried. Voting "yes" – all members of the governing body with the exception of Ms. Case voting "no". (#5614)

[CA] Contract between the City of Cheyenne and the Cheyenne/Laramie County Corporation for Economic Development (Cheyenne LEADS) for industrial and economic development services -- referred to Finance Committee.

[CA] Contract Modification to Contract #5477 between the City of Cheyenne and Recco, Inc d/b/a Five-R Co. for fire alarm tamper switch and fire sprinkler repair work at the Transfer Station. Motion (per Consent Agenda) carried (amount not to exceed \$2,575.71). (#5477)

Consideration of Bid #R-9-11 for furnishing one new roll-off truck for the Sanitation Division (Solid Waste Equipment Lease/Purchase Fund). Mr. Brown moved to reject all bids, seconded by Mr. Pierson. Motion carried. Voting "yes" – all members of the governing body.

Consideration of Bid #R-10-11 for furnishing two new packer trucks for the Sanitation Division (Solid Waste Equipment Lease/Purchase Fund). Mr. Brown moved to reject all bids, seconded by Mr. Spiker. Motion carried. Voting "yes" – all members of the governing body.

[CA] Consideration of Bid #M-3-11 for a contract between the City of Cheyenne and Miracle Recreation Equipment Co., c/o Churchich Recreation, LLC, Niwot, CO, for furnishing and installing playground equipment at David R. Romero South Cheyenne Community Park (Cheyenne Community Recreation Mill 2010) -- referred to Finance Committee.

[CA] Consideration of Bid #R-12-11 for furnishing one new cab and chassis truck with automated refuse side loader body installed from Peterbilt of Wyoming, Cheyenne, WY, for the Sanitation Division (Solid Waste Management Fund) -- referred to Finance Committee.

[CA] Transfer of ownership for a restaurant liquor license application filed with the City Clerk's Office for Soo Hyun Choi, LLC d/b/a Tokyo Bowl, 1829 Dell Range Boulevard, Cheyenne, WY. (License currently held by Iron Chefs, Inc. d/b/a Tokyo Bowl, 1829 Dell Range Boulevard, Cheyenne, WY.) Motion (per Consent Agenda) carried.

Appointment of Tim Thorson to the City-County Health Board. Ms. Broyles moved to approve, seconded by Mr. Valdez. Upon inquiry, Mayor Kaysen reviewed the Mayoral application process for individuals interested in serving on City boards and commissions. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Appointment of Gregory Crisp to the Mayor's Council for People with Disabilities, Frank Harris to the Tourism Promotion Joint Powers Board d/b/a Visit Cheyenne, and Ross McKelvey to the Laramie County Community Juvenile Services Joint Powers Board. Mr. Valdez moved to approve, seconded by Dr. Rinne. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

[CA] Consideration of a proposal for an agreement, recommended by the Art In Public Places Committee, to acquire artwork to be known as "Hare Raising" from Tim Cherry, Branson, MO, for placement at the entrance area of the David R. Romero South Cheyenne Community Park -- referred to Finance Committee.

[CA] Consideration of purchase of a used Jacobson mower from C & M Golf & Grounds, Denver, CO, for the Grounds and Facilities Division (2007-2010 1% Sales and Use Tax) -- referred to Finance Committee.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 6:51 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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